

Consultation Paper

*Draft Regulatory Technical Standards
on the AML/CFT Central Database under Article
11(6) of Regulation (EU)2024/1620*

Contents

1 Responding to this consultation	3
1.1 Data protection	3
1.2 Who should read this paper?	3
2 Executive Summary	4
2.1 Next steps	4
3 Background and rationale	5
3.1 Objective	5
3.2 Simplification and proportionality	6
3.3 Data related to supervisors	6
3.4 Data related to obliged entities	6
3.5 Additional Technical provisions	7
4 Draft Regulatory Technical Standards	8
5 Accompanying documents	25
5.1 Impact assessment with cost-benefit analysis	25
5.2 Overview of questions for consultation	35

1 Responding to this consultation

The Authority for Anti-Money Laundering and Countering the Financing of Terrorism ('AMLA') will host a public hearing on 03 November 2026 to consult on this draft.

Comments are most helpful if they:

- respond to the questions stated;
- indicate the specific point to which a comment relates;
- contain a clear rationale;
- provide evidence to support the views expressed/rationale proposed;
- and describe any alternative regulatory choices AMLA should consider.

1.1 Data protection

The protection of individuals with regard to the processing of personal data by AMLA is based on Regulation (EU) 1725/2018 of the European Parliament and of the Council of 23 October 2018. Further information on data protection can be found under the Legal notice section of the AMLA website.

1.2 Who should read this paper?

All interested stakeholders are invited to read this Consultation Paper. AMLA welcomes participation from all interested stakeholders to the public hearing.

2 Executive Summary

AMLA is establishing a central anti-money laundering and countering the financing of terrorism (AML/CFT) database to support the exchange of supervisory information across the Union and make AML/CFT supervision more targeted, risk-based and effective. Article 11(6) of Regulation (EU) 2024/1620 (AMLAR) mandates AMLA to issue draft Regulatory Technical Standards (RTS) that specify the type of information that supervisors will transmit to the database, and the procedures, formats and timelines of the transmission.

AMLA proposes that the draft RTS specify that supervisory authorities transmit the following information:

- In respect of supervisory authorities and self-regulatory bodies, information on
 - their powers and tasks
 - statistics on resources and staffing, and
 - supervisory activities performed by supervisory authorities
- In respect of obliged entities, information on
 - ML/TF risk,
 - sanctions, administrative measures and periodic penalty payments
 - authorisation, withdrawal of authorisation and fit and proper assessments

In addition to the type of information supervisors will always transmit, and the modalities of such transmission, the proposed draft RTS contain provisions on measures to ensure data quality, confidentiality and the onward sharing of information contained in the database.

AMLA pursues a holistic approach to designing the central AML/CFT database. The objective is to ensure that the database effectively serves AML/CFT supervisors' information needs while minimising ad hoc information requests and avoiding duplication of data transmission. By drawing on information that supervisors already hold or are required to obtain under the new AML/CFT legislative framework, the proposed draft RTS do not impose new reporting requirements on obliged entities.

2.1 Next steps

AMLA will consult on the proposed draft RTS by holding a public hearing on **03 November 2026**.

3 Background and rationale

The new EU anti-money laundering and countering the financing of terrorism (AML/CFT) framework is risk-based. Within this framework, AMLA's role is:

- to monitor and disseminate information on risks;
- to ensure the effective and efficient functioning of the AML/CFT supervisory system through regulation, indirect supervision and oversight, and to contribute directly to it as an AML/CFT supervisor of selected obliged entities from 2028; and
- to coordinate the work of Financial Intelligence Units.

To support the effective discharge of this role, Articles 5-11 of Regulation (EU) 2024/1620 (AMLAR) empower AMLA, *inter alia*:

- to collect and analyse supervisory information on a regular basis and ad hoc where this is necessary to support the execution of AMLA's functions; and
- to establish and maintain a central AML/CFT database.

Article 11(6) of the AMLAR requires AMLA to issue draft Regulatory Technical Standards (RTS) to specify the information to be transmitted to the central AML/CFT database, the scope and level of detail of that information, the reporting formats and timelines, and the conditions for additional information requests.

3.1 Objective

AMLA's objective is to ensure that supervisory authorities that form part of the AML/CFT supervisory system have reliable access to comprehensive data that enable them to discharge their functions effectively. It is also to ensure that that reporting of data is predictable and streamlined, and that the cost of reporting is limited where possible.

The central AML/CFT database should act as a single-entry point for standardised reporting and a repository of comprehensive supervisory information at entity and system level, supporting the detection and analysis of risks and trends, effective indirect supervision and oversight of the functioning of the AML/CFT supervisory system, and targeted AML/CFT supervision at entity-level. Supervisory authorities should be able to access data on a confidential and need-to-know basis.

The proposed draft RTS should be technology neutral. The technical solution through which these requirements are to be implemented will be developed separately and progressively.

3.2 Simplification and proportionality

In developing these proposed draft RTS, AMLA sought to streamline reporting requirements, taking into account the specificities of both the financial and non-financial sectors while meeting the data needs of AMLA and the supervisory authorities.

These reporting requirements, if managed ad hoc and in an unstructured way, would impose significant costs on supervisory authorities. The proposed approach aims to reduce costs by limiting ad hoc requests and simplifying reporting requirements, while ensuring that the future central database remains sufficiently comprehensive to support targeted and risk-sensitive AML/CFT supervision across all Member States.

To further reduce duplication, AMLA will draw on existing supervisory data where possible and reuse information already available in other EU-level systems or reporting frameworks where this is legally and technically feasible.

Finally, throughout the articles, the RTS follows a phased approach for implementation, allowing supervisors to adjust their systems and approaches gradually as reporting requirements come into force. This gradual approach, in line with other AMLA-drafted instruments, provides a longer timeframe for the non-financial sector, and takes into account the particularity of authorities and bodies overseeing self-regulatory bodies.

3.3 Data related to supervisors

AMLA is mandated with contributing to the convergence of supervisory practices and promoting high supervisory standards across the Member States.

To this end, the proposed draft RTS specify the information to be submitted on supervisory authorities, self-regulatory bodies and their areas of responsibility, including their mandate, tasks and powers and staffing (Article 1 and 6). These articles require supervisory authorities to provide and keep up to date detailed information about themselves, their supervisory responsibilities, and the sectors they oversee.

In addition, the database will contain information to be submitted on supervisory activities, as specified in Article 5. In this article, the proposed approach is to transmit a supervisory activity when it reflects the use of a supervisory tool as part of the supervisor's execution of its annual supervisory strategy or plan, or where such a tool is used on an ad hoc basis in response to specific events, emerging risks or concerns identified by the supervisory authority.

3.4 Data related to obliged entities

As part of its tasks under article 5(1) AMLAR, AMLA will produce fine detailed analysis and get a view of vulnerabilities, risks and threats regarding obliged entities at sector, country and EU level. To this end, the proposed draft RTS specify in Article 2 the level of information to be submitted by supervisory authorities in the financial and non-financial sectors on individual obliged entities. This includes the risk profile of the individual obliged entity, group affiliation and supervisory colleges. The

approach in this article focuses on obtaining granular data for each obliged entity, according to its sector of industry.

To complement the risk profile of the obliged entities, Article 3 specifies that all administrative measures, pecuniary sanctions and periodic penalty payments shall be transmitted to the database.

Finally, Article 4 specifies the information to be submitted on opinions or advice provided to other authorities. In line with AMLA's desire to limit reporting to data that is essential for the fulfilment of the objectives listed in Section 3.1, only a specific subset of opinions or advice – linked to ML/TF suspicions – will be transmitted to the database

3.5 Additional Technical provisions

The final section of the proposed draft RTS provides a number of rules around the transmission of information.

Article 7 specifies the conditions for the Authority's requests for additional information. For each additional request, AMLA shall provide a justification based on the intended use of the information.

Article 8 sets out rules for disclosure and confidentiality, including provisions on data protection. Information in the database should be treated as confidential. It can be shared within the AML/CFT supervisory system without prior consent, but prior consent will generally be required sharing information outside the supervisory system.

Article 9 specifies rules on technical specifications and data quality. Whenever possible, an automated transmission of data will be envisaged. Supervisory authorities retain the responsibility to ensure the data is complete, accurate and up to date.

Article 10, on confidentiality, ensures that information shared under the Regulation remains confidential, is protected by professional secrecy rules, and may only be used for AML/CFT supervisory purposes.

Finally, the initial reporting following entry into force and the date of entry into force are detailed in Articles 11 and 12.

4 Draft Regulatory Technical Standards

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) 2024/1620 of the European Parliament and of the Council of 31 May 2024 establishing the Authority for Anti-Money Laundering and Countering the Financing of Terrorism and amending Regulations (EU) No 1093/2010, (EU) No 1094/2010 and (EU) No 1095/2010,¹ and in particular Article 11(6) thereof,

Whereas:

- (1) Supervisory data is essential for an effective risk-based approach to AML/CFT supervision. To that end, the Authority should establish a central AML/CFT database to support targeted, risk-based supervision and oversight of the financial and non-financial sector, identify systemic weaknesses and emerging risks and contribute to the assessment and strategic analyses of ML/TF threats, risks and methods.
- (2) In order to ensure proportionality and efficiency in supervisory reporting, this Regulation takes into account the principles set out in Regulation 2025/2088, which aim to streamline reporting requirements, reduce unnecessary administrative burden, and enhance the usability and consistency of reported data. In particular, this Regulation seeks to minimise duplicative and ad hoc reporting requests by establishing clear and harmonised reporting standards. Given the highly technical nature of data exchange specifications and the need to ensure their timely adaptation to technological developments, these RTS should not prescribe detailed technical provisions on the means for transmitting information to the central AML/CFT database.
- (3) To support the Authority in the performance of its tasks under point (a) of article 5(3) and point (a) of article 5(4) of Regulation (EU) 2024/1620, the central database should contain, for each Member State, a register of supervisory authorities and self-regulatory bodies their mandate, tasks and powers and, where applicable, information on the leading supervisor or the representative of the coordination mechanism. Information related to self-regulatory bodies and the obliged entities they supervise should be communicated to the database by the public body overseeing those self-regulatory bodies.
- (4) To ensure that the Authority can appropriately perform its tasks under point (a) and (f) of Article 5(1) of Regulation (EU) 2024/1620, supervisory authorities, as defined in article 2(1)(46) of Regulation (EU) 2024/1624, should transmit to the central AML/CFT database not only the outcomes of their assessments of the inherent risk, quality of control and residual risk profiles of all credit institutions and financial institutions that meet the criteria set out in Article 12(1), but also the data points collected from obliged entities for the purposes of assessing and classifying their inherent risk profile, quality of controls and residual risk profile, as established under Article 40(2) of Directive (EU) 2024/1640 and where applicable, information on group affiliation and AML/CFT supervisory colleges, in order to facilitate cross-border cooperation and support coherent oversight. The Authority should adopt the risk-based and proportionate approach of the [RTS under art. 40(2) Directive (EU) 2024/1640], which takes into account differences in terms of the scope of the information requested and timelines for updates to the assessment based on the entities sector, size and nature of the business and the level of risk.
- (5) To ensure that the information contained in the central AML/CFT database allows the Authority to properly perform its tasks, in particular, under point (c) of Article 5(1) of Regulation (EU) 2024/1620, supervisory authorities should transmit information on all administrative measures, pecuniary sanctions and periodic penalty payments relating to breaches and weaknesses.

¹ OJ L, 2024/1620, 19.6.2024.

- (6) Supervisory authorities should transmit to the central AML/CFT database information on opinions or advice related to ML/TF risks that they provide to other authorities in the context of authorisation procedures, withdrawal of authorisation procedures, and ‘fit and proper’ assessments of shareholders or members of the management body of individual obliged entities where they raise concerns from an ML/TF perspective or constitute a negative assessment.
- (7) The reports of thematic reviews, as well as information from other types of supervisory activities, including their nature and scope shall be transmitted to the central AML/CFT database. This information enables the Authority to maintain a comprehensive and up-to-date overview on the intensity and focus of AML/CFT supervision across Member States and contributes to effective indirect supervision and oversight, and enable AMLA to perform its tasks under point (e) of Article 5(3) and point (e) of Article 5(4) of Regulation (EU) 2024/1620.
- (8) Requests for additional information pursuant to Article 11(3) of Regulation (EU) 2024/1620 should remain proportionate to the objective pursued and should not impose any undue administrative burden on supervisory authorities. Such requests should be made only where the information sought is reasonably necessary for the performance of the Authority’s tasks as set out in Article 5 of Regulation (EU) 2024/1620.
- (9) The exchange of information and cooperation among relevant actors involved in the application of the AML/CFT framework should be subject to confidentiality rules accompanied by an obligation to obtain the prior consent of the originating authority before any disclosure outside the AML/CFT supervisory system, except where Union law provides otherwise.
- (10) All the personal data processed for the implementation of this Regulation should be handled in accordance with the data protection framework of the Union, including the principles relating to the processing such as lawfulness, fairness and transparency, purpose limitation, data minimisation, accuracy, storage limitation, integrity and confidentiality, and accountability.
- (11) Data protection laws, in particular Regulation (EU) 2016/679 of the European Parliament and of the Council and Regulation (EU) 2018/1725 of the European Parliament and of the Council are applicable to the processing of personal data.
- (12) The European Data Protection Supervisor was consulted in accordance with Article 42(1) of Regulation (EU) 2018/1725 and provided formal comments on [date].
- (13) This Regulation is based on the draft regulatory technical standards submitted to the Commission by the Authority.
- (14) The Authority has analysed the potential costs and benefits related to the draft regulatory technical standards on which this Regulation is based, and conducted an impact analysis.
- (15) As the requirements stipulated by Regulation (EU) 2024/1624 apply to football clubs and football agents from 10 July 2029, this Regulation provides for a deferred application date in relation to these obliged entities.

HAS ADOPTED THIS REGULATION:

Article 1

Information on supervisory authorities, self-regulatory bodies and their areas of responsibility

1. For the purposes of Article 11(2), point (a), of Regulation (EU) 2024/1620, supervisory authorities shall transmit the following information to the central AML/CFT database:
 - (a) the name of their Member State;
 - (b) the name and contact information of the supervisory authority;
 - (c) the name, position and contact information of the persons designated by the authority to grant access to the database to the authority’s staff;

- (d) where applicable, name and contact information of the relevant self-regulatory body/bodies the supervisory authority oversees;
 - (e) where applicable, name and contact information of the leading supervisor in accordance with Article 37(4), first subparagraph of Directive (EU) 2024/1640;
 - (f) where applicable, name and contact information of the representative of the coordination mechanism in accordance with Article 37(4), second subparagraph, point (b), of Directive (EU) 2024/1640;
 - (g) where applicable, which categories of obliged entities listed in Article 3 of Regulation (EU) 2024/1624 are subject to their supervision, as well as the number of supervised obliged entities for each category;
 - (h) where applicable, which categories of obliged entities listed in Article 3 of Regulation (EU) 2024/1624 are subject to supervision by self-regulatory bodies in compliance with Article 37(3) of Directive (EU) 2024/1640, as well as the number of supervised obliged entities for each category;
 - (i) where applicable, which public authority pursuant to Article 52(1) of Directive (EU) 2024/1640 oversees respective self-regulatory bodies designated pursuant to Article 37(3) of Directive (EU) 2024/1640;
 - (j) the level of risk applicable to the sector or sectors under supervision by the reporting supervisory authority according to the most recent national risk assessment conducted pursuant to Article 8(6) of Directive (EU) 2024/1640, specifying the date and period of assessment covered in the assessment or, for the Authority, the most recent risk assessment at Union level;
 - (k) the tasks of the supervisory authority in accordance with Article 37(5) of Directive (EU) 2024/1640;
 - (l) the powers of the supervisory authority in accordance with Article 37(6) of Directive (EU) 2024/1640;
 - (m) where applicable, the powers of the supervisory authority in accordance with Article 37(7) of Directive (EU) 2024/1640.
2. The information referred to in this Article shall be transmitted to the Authority for the first time by 15 July 2027 with the exception of the data under point 1(h), for which the first submission date shall be 31 March 2028, reflecting the number of obliged entities as of 31 December 2027. The number of supervised obliged entities per category under point 1 (g) of this article submitted by 15 July 2027 shall reflect the number of obliged entities as of 31 December 2026.
 3. In the case of the supervisory authorities in the non-financial sector and public authorities overseeing self-regulatory bodies, the transmission of information until 27 June 2028 will be done on a voluntary basis, as per Article 106(1) of Regulation (EU) 2024/1620.
 4. Any change in the information shall be recorded by the supervisory authority in the central database no later than 30 working days after the change becomes effective, with the exception of the numbers of supervised obliged entities per category under point 1 (g) and (h) of this article, for which the data shall be recorded by the supervisory authority in the central database by 31 March of each year, reflecting the number of obliged entities as of 31 December of the previous year.

Article 2

Information on obliged entities to be submitted by supervisory authorities

1. To fulfil their obligations under Article 11(2), point (b) and (e), of Regulation (EU) 2024/1620, supervisory authorities shall transmit to the central database the following information in respect of each obliged entity under their supervision or under the supervision of the self-regulatory bodies they oversee:
 - (a) reference of the obliged entity. For legal persons, the name, address, national registration number and, where available, LEI; and, for obliged entities that are natural persons in the financial sector, the name, surname and address;
 - (b) where available, the inherent risk profile of the obliged entity, as determined in accordance with Article [XX] of Commission Delegated Regulation (EU) 202../xxx, as well as the documentation of any adjustments performed where the inherent risk score does not adequately reflect the level of ML/TF risks to which the obliged entity is exposed;
 - (c) where available, the quality of the obliged entity's AML/CFT controls, as assessed in accordance with Article [XX] of Commission Delegated Regulation (EU) 202../xxx, as well as the documentation of any adjustments performed where the combined score per category does not adequately reflect the level of quality of controls of the obliged entity;
 - (d) where available, the residual risk profile of the obliged entity, as determined in accordance with Article 4 Commission Delegated Regulation (EU) 202../xxx ;
 - (e) where available, the data points on the basis of which the obliged entity's inherent risk profile and the quality of its AML/CFT controls, as referred to respectively in points b. and c., have been determined and assessed;
 - (f) whether there are central contact points as referred to in Article 41 of Directive (EU) 2024/1640, and their identification and Member State. This information should be provided by the host supervisor.
2. For the purposes of point e. of the first paragraph of this article, supervisory authorities shall refer to Annex I, Sections A and B, of the RTS under Article 40(2) of [Directive (EU) 2024/1640], by directly transmitting the data points related to the obliged entity.
3. Where the obliged entity forms part of a group within the meaning of Article 2(1), point (41), of Regulation (EU) 2024/1624, the supervisory authority in charge of the parent undertaking within the meaning of Article 2(1), point (42), of Regulation (EU) 2024/1624, shall also include the name and country of establishment of the parent undertaking within the meaning of Article 2(1), point (42), of Regulation (EU) 2024/1624;
4. Where an AML/CFT supervisory college has been established in relation to the obliged entity according to Article 49 or Article 50 of Directive (EU) 2024/1640, the lead supervisor of the college shall also transmit, where applicable, the name, role and country of establishment of permanent members and onboarded observers.
5. The information referred to in this Article shall be transmitted to the Authority by 31 May and should refer to the period between 1 January and 31 December of the previous year. For the financial sector, the information shall be transmitted to the Authority for the first time by 31 May 2028. For the non-financial sector, the date shall be 31 May 2031.

6. For the purpose of paragraph 1, points b., c., d., and e., and of paragraph 2, the information shall be transmitted to the database no later than 10 working days following the date set in article 5 [RTS 40(2) FS and NFS] by supervisory authorities in accordance with the frequency set out in Commission Delegated Regulation (EU) 2024/1620. In relation to the adjustments to the inherent risk score or the controls quality scores that took place during the course of the year, the adjusted scores, as well as the supporting documentation of the adjustments, should be submitted to the database within 30 working days of the adjustment taking place.

Article 3

Information on administrative measures, pecuniary sanctions and periodic penalty payments

1. For the purposes of Article 11(2), point (c), of Regulation (EU) 2024/1620, supervisory authorities shall transmit to the central AML/CFT database information on administrative measures, pecuniary sanctions and periodic penalty payments imposed in the course of supervision of individual obliged entities in response to breaches of AML/CFT requirements and weaknesses in the internal policies, procedures and controls of the obliged entity that are likely to result in breaches.
2. Where this information has not already been submitted pursuant to Article 2 of this Delegated Regulation, supervisory authorities shall transmit to the central AML/CFT database all available information related to the obliged entity. Specific information about the administrative measures applied, pecuniary sanctions and periodic penalty payments imposed by supervisory authorities shall be transmitted to the central AML/CFT database including:
 - (a) a reference to the obliged entity to which the administrative measure, pecuniary sanction or periodic penalty payment applies;
 - (b) the date of the imposition of the administrative measure, pecuniary sanction or periodic penalty payment;
 - (c) the type of administrative measure;
 - (d) where deemed appropriate by the reporting supervisory authority, additional details of the administrative measure, pecuniary sanction or periodic penalty payment not already reported under any of the other points of this paragraph;
 - (e) whether the administrative measure or pecuniary sanction is linked to a natural person specifying the function that the natural person is holding in the obliged entity, the reasons explaining the link and the following information regarding the concerned natural person: name, surname, date of birth, nationality and country of residence;
 - (f) the status of the administrative measure, pecuniary sanction or periodic penalty payment, including whether any appeal has been brought against them, as well as whether any settlement has been reached between the supervisor and the obliged entity;
 - (g) the date, where available and applicable, in which:
 - the administrative measure is to be complied with;
 - the payment of the pecuniary sanction is due;
 - the effect of the administrative measure ceases;

- the periodic penalty payment ends;
 - (h) the amount of the pecuniary sanction or periodic penalty payment. In the case of settlements, both the imposed amount, when reporting the initial imposition of the sanction, and the settled amount once that amount is known;
 - (i) whether and how the administrative measure, pecuniary sanction or periodic penalty payment has been published, including the reasons for any anonymous publication, delay in publication or non-publication and a link to the publication, where available;
3. Specific information about the nature of the breaches and weaknesses and the supervisory activities and outcomes that led to the administrative measure being applied or the pecuniary sanction or periodic penalty payment being imposed that supervisory authorities shall transmit to the central AML/CFT database include:
- (a) a reference to the supervisory activity through which the breach or weakness has been detected;
 - (b) the area or areas of AML/CFT compliance to which the breach or weakness concerns;
 - (c) a description of the breach or weakness;
 - (d) the level of gravity of the breach
 - (e) the status of the breach or weakness, including whether it has been remediated or is ongoing;
 - (f) indication on whether the breach or weakness only concerns the obliged entity and its local branches, agents or distributors or it also has any cross-border impact;
 - (g) indication of whether any follow-up actions are planned by the supervisor in response to the breach or weakness;
4. For the financial sector, the information referred to in this Article shall be transmitted to the Authority for the first time by 15 July 2027, concerning information on administrative measures, pecuniary sanctions and periodic penalty payments imposed after the specified date. For the non-financial sector, the date shall be 31 December 2029.
5. The information referred to in this Article shall be transmitted in relation to all administrative measures, pecuniary sanctions and periodic penalty payments imposed. The transmission shall take place without undue delay, and, in any case, no later than 30 working days delay following the imposition of the measure or pecuniary sanction and shall be updated without undue delay, and, in any case, no later than 30 working days, following any change to any of the reported information.

Article 4

Information on advice or opinions provided to other authorities

1. Where an advice or opinion provided pursuant to Article 11(2), point (d), of Regulation (EU) 2024/1620 - whether released by the supervisory authority on its own initiative or in response to a request from another authority - raises concerns from an ML/TF perspective or constitutes a negative assessment, supervisory authorities shall transmit to the central AML/CFT database the following information:
- (a) a summary of the request, where relevant;

- (b) a summary of the ML/TF aspects of the advice or opinion provided, including the outcome and the ML/TF concerns raised;
 - (c) the type of the advice or opinion;
 - (d) the name and country of the receiving authority;
 - (e) the date the advice or opinion was provided;
 - (f) the reference of the related obliged entity, where applicable;
 - (g) where an advice or opinion refers to a natural person, the name, surname, date of birth, country of residence, nationality as well as the function (current or perspective) of the natural person in the obliged entity;
2. The information referred to in this Article shall be transmitted to the Authority for the first time by 15 July 2027, concerning information on advice or opinions provided to other authorities after the specified dates. In the case of the supervisory authorities in the non-financial sector and public authorities overseeing self-regulatory bodies, the transmission of information until 27 June 2028 will be done on a voluntary basis, as per Article 106(1) of Regulation (EU) 2024/1620. The transmission shall take place no later than 30 working days delay following the provision of the opinion.

Article 5

Information on supervisory activities

1. Supervisory authorities shall transmit to the central AML/CFT database the following information stipulated in Article 11(2), point (f) and in Article 11(2), point (g), of Regulation (EU) 2024/1620:
- (a) Reference of the obliged entity or obliged entities involved in the supervisory activity;
 - (b) the nature of the supervisory activity;
 - (c) the scope of the supervisory activity conducted;
 - (d) the start date of the supervisory activity;
 - (e) the end date of the supervisory activity;
 - (f) where applicable an indication if the supervisory activity is ongoing;
 - (g) the report of the thematic review produced by the supervisory authority at the conclusion of the thematic review. The report can be submitted in any of the official languages of the European Union;
 - (h) if other authorities participate in the supervisory activity, the details of these authorities and the nature of their involvement.
2. For the financial sector, the information referred to in this Article shall be transmitted to the Authority for the first time from 31 December 2027 concerning information on supervisory activities starting after the specified date. For the non-financial sector, the date shall be 31 December 2029.
3. For the financial sector, the information referred to in paragraph 1 points (a) to (d) and point (h) of this Article shall be submitted to the central AML/CFT database within 30 days of the start of the supervisory activity, with the exception of supervisory activities conducted off-site. The information referred to in paragraph 1 points (e) and where applicable, (g), as well as the information from points (a) to (d) and (h) for supervisory

activities conducted off-site, shall be submitted no later than 30 working days after the end of the supervisory activity.

4. For the non-financial sector, the information referred to in paragraph 1 points (a) to (d) and point (h) of this Article shall be submitted to the central AML/CFT database within 30 working days of the start of the supervisory activity, with the exception of supervisory activities that are not part of a thematic review. The information referred to in paragraph 1 points (e) and where applicable, (g), as well as the information from points (a) to (d) and (h) for supervisory activities conducted either on-site or off-site that have resulted in the imposition of an administrative measure, pecuniary sanction or periodic penalty payment, shall be submitted no later than 30 working days after the end of the supervisory activity.
5. For the financial sector, by way of derogation from paragraphs 1 and 3, where a supervisory activity is conducted off-site, is not part of a thematic review or does not result in the imposition of an administrative measure, pecuniary sanction or periodic penalty payment, supervisory authorities shall only submit the information referred to in paragraph 1, points (a), (b), (c), (d) and (e). This information shall be submitted no later than 31 January of the calendar year following the one in which the supervisory activity was finalised.
6. For the non-financial sector, by way of derogation from paragraphs 1 and 4, where a supervisory activity is not part of a thematic review, or does not result in the imposition of an administrative measure, pecuniary sanction or periodic penalty payment, supervisory authorities shall only submit the information referred to in paragraph 1, point (b), aggregated by sector. This information shall be submitted no later than 31 January of the calendar year following the one in which the supervisory activity was finalised.
7. A supervisory activity shall be reported when it reflects the use of a supervisory tool as part of the supervisor's execution of its annual supervisory strategy or plan, or where such a tool is used on an ad hoc basis in response to specific events, emerging risks or concerns identified by the supervisory authority.

Article 6

Statistical information on staffing and resources

1. For the purposes of Article 11(2), point (h), of Regulation (EU) 2024/1620, supervisory authorities shall transmit to the central AML/CFT database statistical information on AML/CFT specialists allocated to AML/CFT tasks in full-time equivalents (FTEs) within the authority and, if applicable, within the self-regulatory body they oversee, as well as the annual budget (in Euros) available to the supervisory authority that is allocated to the development of activities and the acquisition and maintenance of resources dedicated to the prevention and fight against money laundering and terrorist financing.
2. Statistical information on AML/CFT specialists referred in Paragraph 1 shall be provided by distinguishing amongst the following categories, if available:
 - (a) policy and legal work;
 - (b) risk analysis;
 - (c) supervisory activities;
 - (d) enforcement activities;

3. The information referred to in this Article shall reflect the staffing and budgetary levels as of 31 December of the preceding year and shall be submitted no later than 31 March of the following calendar year. The first transmission shall take place by 31 March 2028 concerning statistical data of year 2027.

Article 7

Additional information

1. The Authority may request additional information from supervisory authorities pursuant to Article 11(3) of Regulation (EU) 2024/1620, where all of the following conditions are met:
 - (a) the requested information is necessary for the performance of one or more of the tasks listed in Article 5 Regulation (EU) 2024/1620;
 - (b) the Authority duly sets out:
 - the specific task listed in Article 5 Regulation (EU) 2024/1620 for which the additional information is required;
 - the justification of the necessity of the information; and
 - the intended use of the information.
2. Without prejudice to the conditions set out in the first paragraph, requests for additional information shall be proportionate to the objective pursued and the information shall be transmitted within 30 working days. With regards to the potential complexity of obtaining data, this deadline can be extended by the Authority. In case the supervisory authority cannot transmit the information to the Authority within the set deadline, it shall justify the reasons therefore and propose a new deadline to the Authority.
3. Supervisory authorities shall inform the Authority without undue delay if they do not have legal access to the information requested pursuant to Article 11(3) of Regulation (EU) 2024/1620.

Article 8

Prior Consent

1. Information submitted pursuant to Article 11, paragraph (2) and (3) of Regulation (EU) 2024/1620 shall be treated as confidential.
2. Use of the information for the tasks of the Authority referred to in Article 5 Regulation (EU) 2024/1620 or within the supervisory system as defined in Article 2(3) of Regulation (EU) 2024/1620 does not require prior consent of the supervisory authority that originated the information. Prior consent shall be required before disclosure to third parties outside of the AML/CFT supervisory system.
3. By way of derogation from paragraph 2, confidential information may be shared without prior consent of the supervisory authority that provided the information where disclosure is authorised or required under Union law, including when the exchange of information is carried out with Financial Intelligence Units, supervisory authorities referred to in Article 2(44), points (c) and (d) of Regulation (EU) 2024/1624 or with authorities in charge of implementing targeted financial sanctions mentioned in Article

66 Directive (EU) 2024/1640. The same applies when the information received by the supervisor is used for the purposes set out in Article 67(3)(b) and (c) of the Directive (EU) 2024/1640.

4. Without prejudice to paragraph 2 and 3, prior consent should always be required whenever the information to be shared originated from a third country authority.
5. Where confidential information received from the supervisory authority that originated it is to be shared without prior consent pursuant to paragraph 3, the supervisory authority that originated the information shall where practicable, be notified prior to such transmission, and shall in any event be informed of the following without undue delay:
 - (a) The exact scope of the confidential information shared;
 - (b) The authority that received the confidential information;
 - (c) the legal basis of the obligation to disclose;
 - (d) the rationale(s) of the disclosure;
 - (e) the obligation in paragraph 2 does not apply to the disclosure of statistical, aggregated or anonymised data.

Article 9

Format, procedures, technical specifications and data quality

1. The Authority shall set out and communicate to supervisory authorities the technical specifications for the submission and exchange of information referred to in this Regulation. Supervisory authorities shall conform to those specifications when submitting information through the central AML/CFT database.
2. The information shall be submitted in electronic form and, when appropriate, the submission process shall be automated.
3. Supervisory authorities shall declare to the Authority a person of appropriate seniority that will represent the supervisory authority when dealing with the Authority for the purpose of submitting information in accordance with this Regulation; they shall report to the Authority any change of that person(s) and they shall ensure that sufficient resources are dedicated for their reporting obligations under this Regulation to be discharged.
4. Supervisory authorities shall notify to the Authority a person or persons designated as tasked with the submission, the requests and the reception of information from the system established under this Regulation. Each designated contact point shall be granted access only to the data and system functionalities required for the performance of the specific tasks assigned to it under this Regulation.
5. Self-regulatory bodies shall make the declarations referred to in this paragraph to the public body overseeing those self-regulatory bodies and enabling their indirect submission.
6. Supervisory authorities shall ensure that the information transmitted to the Authority is complete, accurate, and up to date, and that it meets adequate standards of data quality to enable effective analysis and exchange through the central AML/CFT database.

Article 10

Confidentiality

1. Without prejudice to provisions of this Regulation as to how information is analysed and made available to the supervisory authorities, information submitted to the Authority in accordance with this Regulation shall be subject to Articles 67 and 68 of [DIRECTIVE (EU) 2024/1640].
2. Members of the supervisory authorities' management bodies, and persons working for those authorities or who have worked for those authorities, even after their duties have ceased, shall be subject to professional secrecy requirements and shall not disclose information received in accordance with this Regulation, except in summary or aggregate form only such that natural and legal persons cannot be identified, without prejudice to cases where criminal law proceedings are pending.
3. Supervisory authorities receiving information in accordance with this Regulation shall treat information as confidential and shall use it only in the course of their supervisory activities with regard to the prevention and fight against money laundering and terrorist financing, including appeals against measures and sanctions taken and imposed by those authorities and in any court proceedings concerning supervisory activities.

Article 11

Initial reporting following entry into force

1. Within [XXX] from the date of entry into force of this Regulation, supervisory authorities shall submit to the central AML/CFT database the information referred to in Articles 1 to 7 as applicable.
2. The initial submission shall reflect the status of the information as of the date of entry into force, unless otherwise provided.

Article 3

This Regulation shall enter into force on the [...] day following that of its publication in the *Official Journal of the European Union*.

This Regulation shall be binding in its entirety and directly applicable in the Member States in accordance with the Treaties.

Done at Brussels,

For the Commission
The President
[...]

ANNEX I

Categories of obliged entities

To fulfil their obligation under art. 1 and article 2 of this regulation, Supervisory authorities shall provide the following categorisation for obliged entities:

PART 1: Credit institutions.

Category: Credit institutions.

Sub-category:

- (a) a credit institution means: (a) a credit institution as defined in Article 4(1), point (1), of Regulation (EU) No 575/2013; (b) a branch of a credit institution, as defined in Article 4(1), point (17), of Regulation (EU) No 575/2013, when located in the Union, whether its head office is located in a Member State or in a third country.

PART 2: Financial institutions.

Category: Financial institutions.

Sub-categories:

- (a) an undertaking other than a credit institution or an investment firm, which carries out one or more of the activities listed in points (2) to (12), (14) and (15) of Annex I to Directive 2013/36/EU of the European Parliament and of the Council ("CRD")(INSERT REF), including the activities of currency exchange offices (bureaux de change), but excluding the activities referred to in point (8) of Annex I to Directive (EU) 2015/2366, or an undertaking the principal activity of which is to acquire holdings, including a financial holding company, a mixed financial holding company and a financial mixed activity holding company;
- (b) an insurance undertaking as defined in Article 13, point (1), of Directive 2009/138/EC of the European Parliament and of the Council (INSERT REF), insofar as it carries out life or other investment-related assurance activities covered by that Directive, including insurance holding companies and mixed-activity insurance holding companies as defined, respectively, in Article 212(1), points (f) and (g), of Directive 2009/138/EC
- (c) an insurance intermediary as defined in Article 2(1), point (3), of Directive (EU) 2016/97 where it acts with respect to life insurance and other investment-related insurance services, with the exception of an insurance intermediary that does not collect premiums or amounts intended for the customer and which acts under the responsibility of one or more insurance undertakings or intermediaries for the products which concern them respectively
- (d) an investment firm as defined in Article 4(1), point (1), of Directive 2014/65/EU of the European Parliament and of the Council
- (e) a collective investment undertaking, in particular an undertaking for collective investment in transferable securities (UCITS) as defined in Article 1(2) of Directive 2009/65/EC and its management company as defined in Article 2(1), point (b), of that Directive or an investment company authorised in accordance with that Directive and which has not

designated a management company, that makes available for purchase units of UCITS in the Union

- (f) a collective investment undertaking, in particular an alternative investment fund as defined in Article 4(1), point (a), of Directive 2011/61/EU and its alternative investment fund manager as defined in Article 4(1), point (b), of that Directive that fall within the scope set out in Article 2 of that Directive
- (g) a central securities depository as defined in Article 2(1), point (1), of Regulation (EU) No 909/2014 of the European Parliament and of the Council
- (h) a creditor as defined in Article 4, point (2), of Directive 2014/17/EU of the European Parliament and of the Council (36) and in Article 3, point (b), of Directive 2008/48/EC of the European Parliament and of the Council
- (i) a credit intermediary as defined in Article 4, point (5), of Directive 2014/17/EU and in Article 3, point (f), of Directive 2008/48/EC, when holding the funds as defined in Article 4, point (25), of Directive (EU) 2015/2366 in connection with the credit agreement, with the exception of the credit intermediary carrying out activities under the responsibility of one or more creditors or credit intermediaries;
- (j) a crypto-asset service provider
- (k) a branch of a financial institution referred to in points (a) to (i), when located in the Union, whether its head office is located in a Member State or in a third country;

PART 3: Natural or legal persons acting in the exercise of their professional activities

Category: Natural or legal persons acting in the exercise of their professional activities

Sub-categories:

- (a) auditors
- (b) external accountants
- (c) tax advisors
- (d) any other natural or legal person including independent legal professionals such as lawyers, that undertakes to provide, directly or by means of other persons to which that other person is related, material aid, assistance or advice on tax matters as principal business or professional activity
- (e) notaries
- (f) lawyers
- (g) other independent legal professionals
- (h) estate agents and other real estate professionals to the extent they act as intermediaries in real estate transactions, including in relation to the letting of immovable property for transactions for which the monthly rent amounts to at least EUR 10 000 or the equivalent in national currency, irrespective of the means of payment;
- (i) persons trading, as a regular or principal professional activity, in precious metals and stones;
- (j) persons trading, as a regular or principal professional activity, in high-value goods;
- (k) providers of gambling services

- (l) crowdfunding service providers and crowdfunding intermediaries
- (m) persons trading or acting as intermediaries in the trade of cultural goods, including when this is carried out by art galleries and auction houses, where the value of the transaction or linked transactions amounts to at least EUR 10 000 or the equivalent in national currency;
- (n) persons storing, trading or acting as intermediaries in the trade of cultural goods and high-value goods, when this is carried out within free zones and customs warehouses, where the value of the transaction or linked transactions amounts to at least EUR 10 000 or the equivalent in national currency;
- (o) credit intermediaries for mortgage and consumer credits, other than credit institutions and financial institutions, with the exception of the credit intermediaries carrying out activities under the responsibility of one or more creditors or credit intermediaries
- (p) investment migration operators permitted to represent or offer intermediation services to third-country nationals seeking to obtain residence rights in a Member State in exchange for any kind of investment, including capital transfers, purchase or renting of property, investment in government bonds, investment in corporate entities, donation or endowment of an activity to the public good and contributions to the state budget
- (q) non-financial mixed activity holding companies
- (r) football agents
- (s) professional football clubs

ANNEX II

Data points per article

Article 1:

- Jurisdiction
- Supervisory Authority
- Supervisory Authority - Name of Contact Person
- Supervisory Authority - E-Mail of Contact Person/functional mailbox
- Self-Regulatory Body
- Self-Regulatory Body - Name of Contact Person
- Self-Regulatory Body - E-Mail of Contact Person
- Leading Supervisor according to Art 37 (4) Directive (EU) 2024/1640
- Representative of coordination mechanism according to Art 37(4) b Directive (EU) 2024/1640 (if no leading supervisor per sector)
- If leading supervisor OR representative of coordination mechanism yes, name(s) of co-supervisor(s)
- Follow up field needed to information on Co-supervisors [is Co supervisor an SRB yes/no]
- Obligated entity category as per Annex I
- Obligated entity sub-category as per Annex I
- Number of supervised obliged entities
- Tasks of national supervisory authority as per Article 37 (5) Directive (EU) 2024/1640
- Powers of national supervisory authority as per Article 37 (6) Directive (EU) 2024/1640
- Powers of national supervisory authority as per Article 37 (7) Directive (EU) 2024/1640
- Overall Risk profile of the sector(s)

- Risk profile of the sector: date of finalisation and period of assessment covered

Article 2:

- Indication field: OE is a natural or legal person
- Legal persons: Obligated Entity Name
- Natural persons: Obligated Entity First Name
- Natural persons: Obligated Entity Surname
- Obligated Entity Address
- Obligated Entity LEI
- Obligated Entity national company register number
- Obligated entity belongs to a group (as defined in Art 2 (41) Regulation (EU) 2024/1624)
- Name of Parent Undertaking
- Country of establishment of the Parent Undertaking
- LEI of parent undertaking
- Central contact point according to Article 41 Directive (EU) 2024/1640 – identification
- Central contact point according to Article 41 Directive (EU) 2024/1640 - Member States in which the contact points are located
- Lead supervisor of an AML College
- College established - other supervisors members of the AML college
- Category (ies) and sub-category (ies) of the obliged entity as per Annex I
- Inherent Risk Profile (Article 2 Draft RTS under 40(2) Directive (EU) 2024/1640)
- If applicable, adjusted inherent risk profile (Article 2 Draft RTS under 40(2) Directive (EU) 2024/1640)
- Data points on inherent risks from RTS under Art.40(2) Directive (EU) 2024/1640
- Quality of AML/CFT controls (Article 3 Draft RTS under 40(2) Directive (EU) 2024/1640)
- If applicable, adjusted quality of AML/CFT controls (Article 3 Draft RTS under 40(2) Directive (EU) 2024/1640)
- Data points on AML/CFT controls from RTS under Art.40(2) Directive (EU) 2024/1640
- Residual risk profile (Article 4 Draft RTS under 40(2) Directive (EU) 2024/1640)
- Justification/documentation of changes to the inherent risk profile or quality of AML/CFT controls score upon major events or developments in the operations or management of the OE (as outlined in the Art.40(2) RTS)
- The obliged entity is a credit institution or financial institution that meets the criteria set out in Article 12 (1)

Article 3:

- Reference of the obliged entity concerned
- Reference of the supervisory authority
- Information on administrative measures, pecuniary sanctions and periodic penalty payments (Articles 56, 55 and 57 Directive (EU) 2024/1640, respectively)
- Reference of the administrative measure or pecuniary sanction
- Breach or weakness associated to the administrative measure/pecuniary sanction/periodic penalty payment
- Type of administrative measure or pecuniary sanction

- Further information on the administrative measure/pecuniary sanction
- Links between the pecuniary sanction/administrative measure and specific natural persons
- Date of imposition of the administrative measure/pecuniary sanction/periodic penalty payment
- Status of the imposition of the administrative measure/pecuniary sanction/periodic penalty payment
- Deadline to comply with the administrative measure (Art.56(4) Directive (EU) 2024/1640) or pay the pecuniary sanction, or date in which the administrative measure ceases or date in which the periodic penalty payment ends
- Amount of the pecuniary sanction or periodic penalty payment
- Publication of the administrative measure, pecuniary sanction or periodic penalty payment
- Information on breaches or weaknesses (breaches of Regulation (EU) 2024/1624 or Regulation (EU) 2023/1113, weakness in internal policies, procedures and controls likely to result in breaches)
- Reference of the breach/weakness regarding which the measure/sanction has been imposed
- Supervisory activity related to breach/ weakness
- Area of AML/CFT compliance to which the breach/weakness concerns
- Description of the breach (free text)
- Level of gravity of the breach assigned according to Art.2(1) of the RTS under Article 53(10) of Directive (EU) 2024/1640 / Indication on whether the weakness is likely to result in a breach or not
- Status of the breach or weakness
- Wider or cross-border impact of the breach
- Follow-up actions

Article 4:

- Type of advice or opinion related to ML/TF risks provided to other authorities
- Summary of the advice/opinion given to the requesting authority (free text)
- Receiving authority
- Receiving authority country
- Date advice was provided
- Name of related obliged entity
- Name
- Surname
- Date of birth
- Country of residence
- Nationality
- Current or perspective function in the obliged entity

Article 5:

- Reference of the OE/OEs involved in the supervisory activity
- Participation of other authorities in the supervisory activity
- Number of supervisory activities per nature, scope and sector
- Nature of supervisory activity
- Detailed nature of the supervisory activity
- Scope (areas of AML/CFT compliance) covered by the supervisory activity
- Start date of the supervisory activity
- Ongoing supervision (Y/N)
- End date of the supervisory activity
- Upload of the thematic review report

Article 6:

- Member State
- Authority/SRB
- Self Regulatory Body
- Sector
- Total number of FTEs specialists in AML/CFT
- Specialist AML/CFT: policy and legal experts
- Specialist AML/CFT: risk experts
- Specialist AML/CFT: supervisors (responsible solely for the AML/CFT supervision (both on-site/off-site) of obliged entities under supervision)
- Specialist AML/CFT: enforcement
- Annual AML/CFT budget

5 Accompanying documents

5.1 Impact assessment with cost-benefit analysis

Introduction

As per Article 49(1) of Regulation (EU) 2024/1620, before submitting draft regulatory technical standards (RTS) to the European Commission, AMLA shall conduct open public consultations and analyse the potential related costs and benefits.

This analysis presents the Impact assessment with cost-benefit analysis (IA/CBA) of the main policy options included in the Consultation Paper (CP) on the draft RTS under Article 11(6) of Regulation (EU) 2024/1620 specifying the scope, level of detail, format, and transmission of information to the central AML/CFT database established under Article 11 of Regulation (EU) 2024/1620.

This IA/CBA is qualitative in nature, and the policy choices have been taken primarily in accordance with qualitative considerations, taking into account the experience and professional judgment of supervisors from the financial and the non-financial sector, and AMLA. Moreover, quantitative figures are currently unavailable because the central AML/CFT database has not yet been established, and a dedicated data collection exercise would impose disproportionate burden on supervisory authorities at this stage. Consequently, the assessment relies on structured qualitative analysis informed by supervisory experience and expert judgement.

A. Problem identification

Information underpins effective monitoring and targeted, risk-based supervision. To date, there is no comprehensive central repository of such information. This is because the only central AML/CFT database, EuReCA, is limited to AML/CFT material weaknesses and measures imposed by competent authorities in relation to financial institutions.

To address this, Article 11 of Regulation (EU) 2024/1620 requires AMLA to establish and maintain a central AML/CFT database containing information collected from supervisory authorities across the Union, including AMLA. AMLA shall also make such information available, on a need-to-know and confidential basis, to supervisory authorities, non-AML/CFT authorities, other relevant national authorities and bodies, and the European Supervisory Authorities (ESAs), where necessary to support the fulfilment of their tasks.

In addition to the AML/CFT database, the AML/CFT package contains further reporting requirements linked to AMLA's mandate, including those in the context of the selection process under Article 12(7) of Regulation (EU) 2024/1620. Moreover, in order to support its mandate to monitor developments across the internal market and assess threats, vulnerabilities and risks in relation to ML/TF, AMLA needs access to granular and comprehensive data. While the requirements under Article 12(7) of Regulation (EU) 2024/1620 and Article 40(2) of Directive (EU) 2024/1640 already envisage the use of the same data for both purposes in respect of obliged entities in the financial sector potentially eligible for AMLA's direct supervision, other reporting requirements are currently not structured within a streamlined reporting framework, leading to the risk of duplication in information requests and reduced data comparability across Member States.

B. Policy objectives

When developing the proposed draft RTS, AMLA's objective is to support its risk analysis and indirect supervision or oversight capabilities, and to support supervisory authorities in the exercise of their supervisory tasks by making supervision more informed, targeted and effective.

The proposed draft RTS establishes a harmonised and proportionate framework for transmitting information to the central AML/CFT database, ensuring the availability of high-quality, comparable and timely supervisory information across the Union. They seek to promote consistent reporting practices, facilitate information sharing among supervisory authorities, and streamline data collection.

Accordingly, common requirements are laid down regarding the information to be reported to the database, its scope and level of detail, and the arrangements for its transmission, while taking into account differences between categories of obliged entities and the principle of proportionality, as well as the sensitive and confidential nature of the data collected.

C. Baseline scenario

Under the baseline scenario, AMLA would establish the central AML/CFT database containing only the information explicitly listed in Article 11 of Regulation (EU) 2024/1620. However, in the absence of the proposed draft RTS, no harmonised technical framework would exist to operationalise the reporting obligations laid down in Article 11. Consequently, while the reporting obligations would remain applicable, there would be no common requirements regarding the procedures, formats and timelines for the transmission of information, the scope and level of detail of the information to be reported, the type of information whose disclosure requires prior consent, the potential materiality thresholds for reporting breaches, the conditions under which AMLA may request additional information, and the types of additional information to be transmitted to AMLA.

As a result, supervisory authorities could adopt different approaches when implementing their reporting obligations. For instance, differences could emerge in the interpretation of the scope of information to be transmitted, the level of granularity required, the format in which information should be submitted, and the frequency of reporting. Such differences would be probable, given the diversity of supervisory practices and information systems across Member States and sectors. They would undermine data quality, comparability and usability, limiting the effectiveness of the central AML/CFT database as a supervisory and analytical tool and reducing its value for both AMLA and supervisory authorities.

Furthermore, without a harmonised reporting framework, AMLA would likely need to rely more heavily on ad hoc information requests to support the performance of its tasks, while the comparability of data across Member States could be reduced. This would increase the administrative burden for both AMLA and supervisory authorities and reduce the efficiency gains expected from the establishment of the central AML/CFT database.

Overall, although the central AML/CFT database would still be established pursuant to Article 11 of Regulation (EU) 2024/1620, its effectiveness as a common supervisory and analytical tool would be significantly reduced in the absence of the technical specifications included in the proposed draft RTS.

D. Options considered, cost-benefit analysis, and preferred option

In the absence of a harmonised framework governing the scope, format and transmission of information to the central AML/CFT database, the database would be significantly less effective as a supervisory and analytical tool. Against this background, AMLA assessed different policy options that vary in the scope and level of reporting requirements, each involving different costs and expected benefits. The preferred options are those that, in AMLA's assessment, best support the objectives of the central AML/CFT database while taking into account the balance between the associated costs and expected benefits.

This section starts by outlining the overarching principles guiding the policy decisions. Then, it presents the main policy options considered for each policy issue addressed by the proposed draft RTS, followed by a qualitative analysis of the potential costs and benefits of each option, and concludes by identifying the preferred option resulting from the analysis.

Overarching principles

Overall, AMLA aims to ensure that the AML/CFT database supports effective, consistent and risk-based AML/CFT supervision and oversight, while strengthening AMLA's risk analysis and risk assessment capabilities.

To achieve this objective, AMLA seeks to establish a database that is efficient, providing a single-entry point for standardised reporting; comprehensive, ensuring the availability of supervisory information at the obliged entity and Union levels; and robust, providing granular, high-quality information to support supervisory activities and enable the detection and analysis of risks and trends for risk-based AML/CFT supervision.

AMLA also seeks to establish a common and harmonised reporting framework for the collection, transmission and storage of AML/CFT information. The objective is to ensure data comparability, promote supervisory convergence, facilitate the timely identification of emerging risks across the Union, minimise duplicative information requests, improve administrative efficiency, and provide the foundation for a future-proof and scalable database architecture capable of supporting AMLA's evolving analytical and supervisory needs.

Finally, AMLA seeks to ensure that the AML/CFT database provides timely access to supervisory information at the obliged entity, sector and country levels, while making that information readily accessible through a user-friendly interface that enables efficient retrieval and analysis of data.

Policy issue 1: Granularity of risk profile of obliged entities to be transmitted to the central AML/CFT database

The first policy issue concerned the level of granularity of the information that supervisory authorities should transmit to the central AML/CFT database regarding the risk profiles of obliged entities. AMLA considered for which obliged entities the information submitted should go beyond the basic risk profile required by Article 11 of Regulation (EU) 2024/1620, by including also the underlying data points used to determine that risk profile. To that end, AMLA considered three policy options.

- A. Transmission of basic risk profile information for all obliged entities, while providing the full set of underlying data points only for obliged entities that are selected for AMLA's direct supervision pursuant to Article 12 of Regulation (EU) 2024/1620.

- B. Transmission of the full set of underlying data points for obliged entities in the financial sector, while limiting the level of detail for obliged entities in the non-financial sector.
- C. Transmission of the full set of underlying data points for all obliged entities.

Option A

Under this option, supervisory authorities would transmit only basic information on the risk profiles of all obliged entities, consisting of the overall risk scoring. More detailed information would be available only in relation to credit institutions, financial institutions and groups of credit and financial institutions subject to AMLA's direct supervision.

In terms of benefits, this option would provide at least high-level access to the risk profiles of all obliged entities while entailing relatively low one-off implementation and recurring operational costs for supervisory authorities, as they would only need to transmit this limited set of information. For AMLA recurring operational costs would remain low due to the smaller volume of information to be managed within the database.

However, these benefits would be accompanied by significant limitations. The dataset would provide only a partial understanding of ML/TF risks across the Union, thus limiting the ability to infer macro-level insights from the analysis of the data. Although only a limited set of information would be transmitted under this option, the technical infrastructure required to establish and operate the central AML/CFT database would still need to be put in place. As a result, AMLA would incur the fixed one-off implementation costs of establishing the reporting framework without fully exploiting the analytical potential of the database. At the same time, AMLA would need to rely more heavily on ad hoc requests for additional information to support its risk analysis and supervisory tasks. This would create recurring operational costs for supervisory authorities by responding to individual requests and require additional operational resources for AMLA to collect, consolidate and analyse information outside the standard reporting framework. It would reduce operational efficiency and data comparability, while the more limited information available and the reduced quality of the resulting analysis would reduce the usefulness of the database for supervisory authorities.

In sum, while this option would keep one-off implementation costs and recurring operational costs relatively low for both supervisory authorities and AMLA, it would substantially reduce the analytical value of the database. The resulting need for more frequent ad hoc information requests would create recurring operational costs for supervisory authorities and for AMLA, reducing the overall efficiency of the reporting framework.

Option B

Under this option, supervisory authorities would transmit all the data points specified in the proposed draft RTS under Article 40(2) of Directive (EU) 2024/1640 for obliged entities in the financial sector. For the non-financial sector, less granular data points would be reported, focusing on aggregated risk profile information rather than comprehensive underlying data points.

In terms of benefits, this option would enable the central AML/CFT database to consolidate, in a single repository, the entity-level dataset for obliged entities in the financial sector, while limiting the burden associated with reporting detailed information for the much larger population of non-financial sector obliged entities. One-off implementation costs for supervisory authorities would remain moderate, as

detailed reporting would only be required for obliged entities in the financial sector. Recurring operational costs would also remain relatively limited because less information would need to be reported and maintained on an ongoing basis. For AMLA, recurring operational costs would remain moderate due to the more limited volume of information to be managed within the database. This approach would support AMLA's risk assessment work in respect of the financial sector.

Nevertheless, this option would result in an uneven level of information across sectors and would not provide a complete and detailed view of ML/TF risks throughout the Union. Although supervisory authorities would already need to collect and maintain more granular information on obliged entities for the purposes of AML/CFT supervision, that information would not be systematically transmitted to the central AML/CFT database. Moreover, although this option would make greater use of the central AML/CFT database than Option A, the technical infrastructure required to establish and operate the database would still not be fully utilised, as detailed entity-level information would not be transmitted for the non-financial sector. Consequently, AMLA would still need to rely on ad hoc requests to obtain such information. Rather than fully realising the efficiencies of the central AML/CFT database, this approach would create recurring operational costs for supervisory authorities by responding to individual requests and require additional operational resources for AMLA to collect, consolidate and analyse information outside the standard reporting framework. This would reduce operational efficiency and limit data comparability. The coexistence of entity-level reporting for some sectors and aggregated reporting for others would also increase the complexity of data management and coordination for both AMLA and supervisory authorities.

Overall, this approach would increase the analytical value of the database compared with Option A, while keeping one-off implementation costs and recurring operational costs relatively low. However, analytical capabilities would remain limited due to the lack of granular entity-level information in the non-financial sector, and the continued need for ad hoc information requests would create recurring operational costs for both supervisory authorities and AMLA, reducing the overall efficiency of the reporting framework.

Option C

Under this option, supervisory authorities would transmit all data points referred to in the RTS under Article 40(2) of Directive (EU) 2024/1640 for all obliged entities. This would include detailed information on inherent risk, the quality of AML/CFT controls, residual risk, and the data points used in the assessment process.

This option would entail several benefits. First, this approach would provide AMLA and supervisory authorities with access to comprehensive entity-level information across all sectors, thereby enabling AMLA to perform granular cross-border, cross-sector and Union-wide risk analysis. This would facilitate the identification of emerging risks, cross-border risk patterns and systemic risks, support targeted supervisory interventions, and enable meaningful benchmarking. In turn, this would contribute to strengthening supervisory convergence, improve cooperation among supervisory authorities, and support AMLA's direct and indirect supervision, oversight, strategic analysis and risk assessments. The availability of granular information and the higher quality of analytical output would also improve the usefulness of the database for supervisory authorities. Lastly, the establishment of a comprehensive reporting framework is expected to reduce the need for repeated ad-hoc information requests and generate efficiency gains for AMLA and supervisory authorities over time.

This approach would entail significant one-off implementation costs. Supervisory authorities would need to establish technical and operational processes for transmitting granular information for all obliged entities under their supervision. Recurring operational costs would also be higher, as supervisory authorities would need to report a significantly larger volume of information. For AMLA, both one-off implementation costs and recurring operational costs would also be higher due to the significantly larger volume of information to be managed and analysed within the database.

Nevertheless, these costs could be mitigated by several factors. First, the proposed draft RTS would rely to the greatest extent possible on information already collected and validated by supervisory authorities in the context of assessing and classifying the inherent and residual risk profile of obliged entities. In addition, implementation is expected to take place progressively. This is reflected in the phased implementation of the reporting requirements, including a later first reporting date for the non-financial sector to allow additional time for implementation by supervisory authorities. In particular, the availability and quality of the underlying data points are expected to improve over time as the methodologies under Article 40 of Directive (EU) 2024/1640 are implemented, national reporting capabilities mature, data quality arrangements are further developed, and reporting becomes increasingly automated. Second, as implementation progresses, recurring operational costs for both supervisory authorities and AMLA are expected to decrease through greater automation and the progressive integration of reporting into supervisory processes. Moreover, as the technical infrastructure required to establish and operate the central AML/CFT database would already be in place, extending reporting to the full set of data points would not result in a proportionate increase in implementation and operational costs. Third, the existence of a centralised reporting framework is expected to reduce future ad hoc information requests and duplicative data collections.

Overall, although Option C would result in higher one-off implementation and recurring operational costs than the other two options, it would provide the most comprehensive and analytically valuable dataset and best support the objectives of the central AML/CFT database. Importantly, by establishing a holistic and harmonised reporting framework, this option would greatly reduce the need for repeated ad hoc information requests, minimise duplicative data collections, and streamline supervisory reporting over time. As supervisory reporting becomes increasingly automated and integrated into supervisory processes, these long-term efficiency gains for both AMLA and supervisory authorities are expected to outweigh the higher upfront implementation costs, while also providing a future-proof framework capable of supporting the analytical and supervisory activities of AMLA and supervisors.

Preferred option

Based on the considerations above, **Option C** was selected as the preferred option because it best fulfils the objectives and underlying rationale of the central AML/CFT database. It strikes the most appropriate balance between effectiveness, harmonisation and long-term efficiency, while ensuring that the database is capable of supporting AMLA's current and future analytical and supervisory needs. Although it entails higher upfront implementation costs, these are justified by the long-term benefits of a holistic reporting framework and the more efficient use of supervisory information across the Union.

Policy issue 2: Scope of information on AML/CFT breaches, administrative measures and pecuniary sanctions to be transmitted to the central AML/CFT database

The second policy issue concerned the scope of the information that supervisory authorities should transmit to the central AML/CFT database regarding the AML/CFT breaches they identified, and the administrative measures and pecuniary sanctions they imposed. In this context, AMLA considered two policy options.

- A. Reporting limited to administrative measures and pecuniary sanctions imposed for serious, repeated or systematic breaches.
- B. Comprehensive reporting of all administrative measures and pecuniary sanctions imposed in response to AML/CFT breaches and weaknesses.

Option A

Option A would limit the scope of reporting requirements. Supervisory authorities would only be required to submit information on the administrative measures and pecuniary sanctions imposed in response to serious, repeated or systematic breaches. This approach would be similar to the current reporting obligation related to EuReCA and established by the Commission Delegated Regulation (EU) 2024/595, which limits the reporting requirements to ‘material’ AML/CFT weaknesses and related measures.

In terms of benefits, this option would reduce the reporting burden for supervisory authorities, by limiting reporting obligations to cases that are most relevant from a supervisory and risk perspective. For the supervisory authorities in the financial sector, this option would provide a certain continuity with respect to the current reporting obligation, thus limiting interpretation and adaptation challenges. For AMLA, the definition of the reporting requirements and the implementation on a technical level would be facilitated. Moreover, both the implementation and the ongoing operational costs would be lower, although a significant proportion of the implementation effort would still be required, as the technical infrastructure for the reporting framework would need to be established regardless of the number of submitted cases.

Despite its benefits, this approach would entail significant limitations. First, it would not provide a comprehensive dataset, therefore AMLA would face significant constraints when performing risk analyses, identifying emerging and systemic risks, identifying recurring compliance weaknesses, and benchmarking supervisory practices. If only the most significant breaches were reported, AMLA’s ability to identify emerging risks or systemic weaknesses would be limited. The additional reporting limitations applicable to non-financial supervisors could further reduce the completeness of the information and the use of the database for risk assessment and oversight purposes. Therefore, AMLA would need to resort to ad hoc information requests to complement the information available in the database. This would generate additional costs for supervisory authorities, reduce administrative and operational efficiency, and reduce data comparability over time. At the same time, this approach would limit the benefits for supervisory authorities, as it would only provide them with access to general statistics and limited supervisory information. Moreover, it would reduce administrative efficiency for supervisory authorities, as they would continue to use their own systems to record supervisory measures and AML/CFT breaches, while replicating that information in the database.

Overall, Option A would limit the reporting burden, as well as the one-off implementation and ongoing operational costs. However, these savings would come at the expense of the completeness, consistency and analytical value of the information available in AML/CFT database, might lead to

additional operational costs in case of ad hoc information requests by AMLA, and might create administrative inefficiency for supervisory authorities.

Option B

Option B would introduce more comprehensive reporting requirements. Supervisory authorities would be required to report information on all administrative measures, pecuniary sanctions and periodic penalty payments imposed to obliged entities in response to AML/CFT breaches and weaknesses.

In terms of benefits, this option would establish a comprehensive and consistent dataset covering administrative measures, pecuniary sanctions, periodic penalty payments and AML/CFT breaches and weaknesses across all sectors and Member States. This would significantly strengthen AMLA's risk assessment capabilities by enabling it to identify emerging risks, cross-border patterns, sectoral vulnerabilities and recurring compliance deficiencies that may not be apparent when only the most serious cases are reported. Information on lower-level breaches, when analysed collectively, may reveal systemic weaknesses or emerging trends that would otherwise remain undetected. Moreover, the prompt availability of this information would reduce the need for additional data collections to complement AMLA's analyses. For supervisory authorities, this approach would enhance legal clarity and promote data comparability. Reporting all breaches would eliminate uncertainty regarding reporting thresholds and reduce the risk of divergent reporting practices. Removing the additional reporting conditions applicable to non-financial supervisory authorities would further enhance consistency across sectors. Furthermore, the availability of comprehensive information and higher-quality analytical insights would increase the value of the database for supervisory authorities. Finally, this approach would enhance administrative efficiency for supervisory authorities, as they could easily access the data entered on their supervised entities for monitoring purposes.

In terms of costs, this approach would entail higher one-off implementation and ongoing operational costs compared with the previous option, both for AMLA and supervisory authorities. Supervisory authorities would be subject to a higher reporting burden and would potentially also need to employ more resources, given the increased volume of information to be validated and reported to the database. AMLA would incur higher implementation costs due to the extended scope of the reporting coverage, as well as higher operational costs related to hosting, managing, processing and analysing a significantly larger volume of data. Comprehensive reporting could also increase the volume and diversity of information available in the database, including information on lower-level breaches and measures. While such information may provide valuable insights when analysed collectively, it could initially make it more challenging to identify the most relevant supervisory signals and ensure consistent analysis across Member States, particularly given differences in national supervisory and enforcement practices. Data quality and consistency may also improve only progressively as reporting practices mature. Nevertheless, these risks would be mitigated through the harmonised reporting framework established by the proposed draft RTS, the common reporting formats and data quality requirements laid down in the proposed draft RTS, and the progressive automation and integration of reporting into supervisory processes.

Overall, while this option would entail higher one-off implementation and ongoing operational costs for both AMLA and national supervisory authorities, these costs would be outweighed by significant benefits in terms of added value from an analytical and supervisory perspective, as well as increase in administrative and operational efficiency over time.

Preferred option

Option B was selected as the preferred option because it best fulfils the objectives and the rationale underpinning the establishment of the central AML/CFT database.

Although it entails higher one-off implementation and ongoing operational costs, and a higher reporting burden compared to Option A, these costs are outweighed by the significant increase in expected benefits. A comprehensive database would provide complete, consistent and comparable information across Member States and sectors, thus enhancing the AMLA's risk assessment and supervisory capabilities, as well as the analytical value for supervisory authorities. Harmonised and comprehensive reporting requirements would also enhance the usability of information for supervisory authorities, improve legal clarity, and increase administrative efficiency over time.

Overall, a comprehensive dataset would best serve the objective to support consistent, effective, risk-based supervision at Union level, promote supervisory convergence, and strengthen AML/CFT capabilities across the Union.

Policy issue 3: Granularity and frequency of reporting information on supervisory activities to the central AML/CFT database

The third policy issue concerned the level of granularity and the frequency with which supervisory authorities should transmit information on supervisory activities to the central AML/CFT database. AMLA considered how to ensure that the database provides sufficiently detailed and timely supervisory information to support its indirect supervision and oversight, supervisory convergence and risk analysis across the Union, while ensuring that reporting obligations remain proportionate and do not impose unnecessary administrative burden on supervisory authorities. To that end, AMLA considered two policy options.

- A. **Uniform reporting** of all supervisory activities at the activity and entity level.
- B. **Differentiated reporting** according to the nature, outcome and sector of the supervisory activity.

Option A

Under this option, supervisory authorities would transmit information on all supervisory activities at the activity and entity level. Information would be reported shortly after the start and conclusion of each supervisory activity, irrespective of its nature or outcome. In addition, the supervisory report produced following each supervisory activity would be transmitted to the central AML/CFT database.

This option would provide AMLA and supervisory authorities with the most comprehensive supervisory dataset. It would enable near real-time monitoring of supervisory activities across the Union, facilitate detailed analysis of supervisory practices and the intensity and focus of AML/CFT supervision across Member States, strengthen supervisory convergence, and support the identification of emerging risks. The availability of detailed information and supervisory reports for every supervisory activity would also reduce the need for potential ad hoc information requests.

However, this option would entail significant one-off implementation and recurring operational costs for supervisory authorities. It would require the transmission of detailed information for all supervisory activities at the level of each obliged entity, irrespective of their nature or supervisory outcome. Information on the commencement of each supervisory activity would need to be transmitted without

undue delay, while information on its completion, together with the corresponding supervisory report, would need to be submitted within 30 working days following the finalisation of every supervisory activity. Applying these reporting deadlines uniformly to all supervisory activities would require supervisory authorities to establish processes capable of supporting continuous reporting, including for supervisory activities for which the immediate availability of detailed information would provide limited additional analytical value for AMLA's tasks. The requirement to transmit supervisory reports for every activity would also substantially increase reporting volumes, much of which would consist of unstructured documentation requiring additional preparation, transmission and management.

For AMLA, this option would similarly entail higher recurring operational costs due to the significantly larger volume of structured and unstructured information requiring storage, processing and analysis. While this approach would maximise the completeness of the database, the additional analytical benefits would not justify the significantly higher reporting burden imposed on supervisory authorities, as receiving the additional information in near real time would provide only limited added value for AMLA's analytical, indirect supervision and oversight tasks.

Overall, although this option would maximise the amount of information available in the central AML/CFT database, it would generate significant implementation and operational costs for both supervisory authorities and AMLA and would impose a reporting burden that would exceed what is necessary to achieve the objectives of the database.

Option B

Under this option, reporting requirements would be differentiated according to the nature of the supervisory activity, its outcome and the sector concerned.

For the financial sector, supervisory authorities would report information on supervisory activities within the specific timeframe provided for in the draft RTS for all on-site supervisory activities and for off-site supervisory activities that are thematic reviews or that result in the imposition of an administrative measure, pecuniary sanction or periodic penalty payment. Information on all other supervisory activities carried out would be transmitted to the central AML/CFT database on an annual basis at the level of the obliged entity.

For the non-financial sector, such detailed reporting would be required only for those supervisory activities that are thematic reviews or that result in the imposition of an administrative measure, pecuniary sanction or periodic penalty payment, irrespective of whether they are conducted on-site or off-site. Information on all other supervisory activities would be reported annually in aggregated form, broken down by the nature of the supervisory activity and by sector.

From a benefits perspective, this option would strike a balance between ensuring the availability of timely supervisory information for AMLA and maintaining proportionate reporting obligations for supervisory authorities. By limiting the reporting timeframes specified in the draft RTS to supervisory activities that are most relevant from a supervisory and risk perspective, AMLA would receive timely information on cases most likely to influence its indirect supervision and oversight, supervisory convergence and risk analysis. At the same time, annual reporting for other supervisory activities would continue to provide AMLA with a sufficiently comprehensive overview of supervisory coverage, extent and trends across Member States, while avoiding continuous reporting where the analytical value of more frequent reporting would be limited.

This differentiated reporting model would also improve the operational efficiency of the reporting framework. Supervisory authorities would benefit from greater flexibility by concentrating more frequent reporting on the supervisory activities of greatest significance, while integrating the reporting of other supervisory activities into their regular annual reporting processes. For AMLA, the combination of more frequent reporting for significant supervisory activities and annual reporting for all remaining activities would continue to provide a comprehensive picture of supervisory activity across the Union while avoiding the continuous transmission and processing of information whose earlier availability would provide only limited additional analytical value. In addition, the draft RTS would not extend the requirement to transmit supervisory reports to all supervisory activities, thereby further reducing the volume of structured and unstructured information requiring transmission, storage and analysis.

From a cost perspective, this option would provide less granular and less timely information for supervisory activities subject only to annual reporting. As a result, AMLA would have a less immediate view of certain supervisory developments and limited entity-level information for those supervisory activities in the non-financial sector where annual reporting would be provided in aggregated form. However, these limitations are considered proportionate, as the additional analytical value of more frequent and more granular reporting would not justify the significantly higher reporting burden and operational costs for supervisory authorities. Although the fixed one-off implementation costs associated with establishing the reporting framework are expected to be broadly comparable under both options, as the core technical infrastructure would need to be developed irrespective of the reporting model, Option B would avoid the substantially higher recurring operational costs associated with continuous reporting and the transmission of supervisory reports for all supervisory activities.

Overall, this option provides the most proportionate balance between analytical value and reporting burden. It ensures that AMLA receives timely information on supervisory activities that are most relevant for the performance of its tasks while limiting recurring operational costs for both supervisory authorities and AMLA.

Preferred option

Option B was selected as the preferred option because it provides the most proportionate balance between the analytical needs of AMLA and the reporting burden for supervisory authorities. While Option A would provide more comprehensive and timely information, the additional analytical benefits would not justify the significantly higher recurring operational costs and reporting burden. Option B therefore best supports the objectives of the central AML/CFT database while ensuring proportionate and efficient reporting requirements.

5.2 Overview of questions for consultation

Question 1: Do you have any comments on the proposals in Article 1, 5 and 6 (information on supervisory authorities, self-regulatory bodies and their areas of responsibility, and supervisory activities of the draft RTS? If you think adjustments are needed, please explain your rationale and provide information of the impact the proposals would have if they remained unchanged.

Question 2: Do you have any comments on the proposals in Article 2 (information on obliged entities to be submitted by supervisory authorities) of the draft RTS? If you think adjustments are needed, please explain your rationale and provide information of the impact the proposals would have if they remained unchanged.

Question 3: Do you have any comments on the proposals in Article 3 and 4 (information on enforcement measures and advice or opinions provided to other authorities) of the draft RTS? If you think adjustments are needed, please explain your rationale and provide information of the impact the proposals would have if they remained unchanged.

Question 4: Do you have any comments on the proposals in Article 7, 8 and 9 (additional information, prior consent, technical specification, data quality and confidentiality) of the draft RTS? If you think adjustments are needed, please explain your rationale and provide evidence of the impact the proposals would have if they remained unchanged.